

**UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF FLORIDA
PENSACOLA DIVISION**

DEBRA NELSON,

Plaintiff,

vs.

CASE NO.: 3:25-cv-1447-MCR-ZCB

**AMENTUM GOVERNMENT
SERVICES PARENT HOLDINGS
LLC, CLARENCE XANDER,
JANICE HUGHES, HEATHER
GUNN, DAKOTA THOMAS,
ELIAS VELASQUEZ, and YUSEF
ABDUL-JAMI,**

Defendants.

**RESPONSE IN OPPOSITION TO PLAINTIFF’S
MOTION FOR SANCTIONS FOR BAD FAITH, IMPROPER
DISCLOSURE, AND CROSS-CASE COORDINATION ON BEHALF OF
DEFENDANT, AMENTUM GOVERNMENT SERVICES PARENT
HOLDINGS LLC, AND LINDSAY DENNIS SWIGER**

Defendant, Amentum Government Services Parent Holdings LLC (“Amentum”), and Lindsay Dennis Swiger file this Response in Opposition to Plaintiff’s Motion for Sanctions for Bad Faith, Improper Disclosure, and Cross-Case Coordination (“Motion”) (Doc. 29).

I. INTRODUCTION

Plaintiff’s Motion is patently frivolous and should be flatly denied. Even

accepting Plaintiff's baseless and unsupported assertions as true – which they are not, her Motion does not identify any sanctionable conduct. Amentum and its counsel, Lindsay Dennis Swiger, are permitted – in fact, encouraged – to communicate openly about the defense of this case. Further, Ms. Swiger is permitted to speak with counsel for other parties about matters that are not privileged or confidential to counsels' respective clients. Ms. Swiger does not represent Plaintiff, who is proceeding *pro se*. Ms. Swiger does not owe any duty to Plaintiff, although Ms. Swiger always strives to be professional and candid in her communications with Plaintiff. Plaintiff has – and cannot – identify any basis for an award of sanctions because none exists.

The only sanctionable conduct before the Court is Plaintiff's filing of her frivolous Motion, which itself constitutes a violation of Rule 11 of the Federal Rules of Civil Procedure ("Rule 11"). *See Smith v. Psychiatric Sols., Inc.*, 750 F.3d 1253, 1260 (11th Cir. 2014) ("[T]he filing of a motion for sanctions is itself subject to the requirements of the rule and can lead to sanctions.") (quoting Fed. R. Civ. P. 11). Plaintiff's Motion lacks any basis in fact or law and is frivolous on its face. Accordingly, Plaintiff should be required to pay Amentum's attorneys' fees for having to respond to her frivolous Motion.

II. LEGAL ARGUMENT

Plaintiff brings the Motion under Federal Rules of Civil Procedure 11 and 37,

as well as the Court’s inherent authority. Plaintiff contends that Ms. Swiger disclosed Plaintiff’s “impending termination” to legal counsel for a defendant in another lawsuit filed by Plaintiff against another former employer, Curtiss-Wright, while Plaintiff and Amentum were “in active settlement negotiations.”¹ (Doc. 29 at 1) This is not true. Ms. Swiger did not disclose any information about Plaintiff to counsel for Curtiss-Wright. However, even if she had disclosed Plaintiff’s “impending termination” to counsel for Curtiss-Wright, this is not sanctionable conduct under the circumstances or authority cited by Plaintiff.

First, “Rule 11 of the Federal Rules of Civil Procedure governs frivolous pleadings, motions, or other papers submitted in federal court.” *Rodriguez v. Goff*, No. 3:20cv5946-MCR-HTC, 2022 U.S. Dist. LEXIS 77413, at *8 (N.D. Fla. Feb. 2, 2022); *see also* Fed. R. Civ. P. 11. A cursory review of Plaintiff’s Motion shows that she does not take issue with any filing made by Amentum or Ms. Swiger. Indeed, other than two Motions for Extension of Time and a Notice of Non-Opposition to Plaintiff’s Motion for Leave to File Third Amended Complaint (Doc. 14, 19, 31), Amentum and Ms. Swiger have filed no other papers in this case. (*See* Docket.) Accordingly, Plaintiff’s reliance on Rule 11 is misplaced. Therefore, Plaintiff’s Motion under Rule 11 is frivolous and should be denied.

¹ The other case at issue is captioned *Debra Nelson v. Curtiss Wright Electro Mechanical Corp. d/b/a Curtiss-Wright Steam and Air Solutions, et al.*, Case No. 2:25-CV-00405-RMG-MGB, pending in the United States District Court for the District of South Carolina, Charleston Division.

Second, and similarly, Rule 37, Federal Rules of Civil Procedure (“Rule 37”), does not provide a basis for sanctions against Amentum or Ms. Swiger. Rule 37 governs motions to compel and other discovery motions and authorizes sanctions for failure of a party to comply with a court’s discovery order and for other limited discovery violations. *See* Fed. R. Civ. P. 37; *Jet Blast, Inc. v. Blue Lake Serv., LLC*, 348 F.R.D. 714, 717 (N.D. Fla. 2025). This case has yet to advance beyond the pleading stage and the parties have not engaged in any discovery. Because Rule 37 applies exclusively to discovery-related matters, Plaintiff’s reliance on Rule 37 is misplaced, and Plaintiff’s Motion is frivolous and should be denied.

Third, Plaintiff’s invocation of the Court’s inherent authority to supervise the integrity of judicial proceedings does not provide a basis for sanctions against Amentum or Ms. Swiger. Even assuming *arguendo* that Plaintiff’s assertions were true, nothing she describes in the Motion compromised the judicial proceeding in any way or would warrant the imposition of sanctions, particularly, the drastic sanctions of striking Amentum’s answer (which has not yet been filed) or entering an adverse inference against Amentum on a central issue in dispute in this case. Simply put, counsel is under no obligation to advise Plaintiff of an imminent termination and maintains the right to confer with other attorneys with client consent.

Further, Amentum and the undersigned counsel vehemently deny the

assertions and mischaracterizations set forth in Plaintiff's Motion, which are baseless, incorrect, and wholly misguided. Ms. Swiger was unaware of Plaintiff's lawsuit against Curtiss-Wright at the time of Plaintiff's deposition in that case, nor has Ms. Swiger provided documents or information to counsel for Curtiss-Wright regarding Plaintiff or this case. As Plaintiff is well aware, Plaintiff's Second Amended Complaint is a matter of public record, accessible to anyone, including counsel for Curtiss-Wright. Further, it is standard practice in employment litigation to inquire of the plaintiff's employment history and current employment status at the plaintiff's deposition and issue subpoenas to other employers for the plaintiff's employment records. Precisely because counsel does not know the plaintiff's employment status or what employment records other parties may maintain, the deposition questions and subpoena topics are often broad and include questions about termination and requests for termination records. That is likely what occurred in this case, because Ms. Swiger did not notify counsel for Curtiss-Wright of Plaintiff's termination.

Likewise, it is not sanctionable to engage in settlement discussions "knowing termination was imminent." (Doc. 29 at 2) Nevertheless, the facts are that the undersigned asked Plaintiff if she was interested in discussing resolution and, if so, to make an offer. Without disclosing the substance of confidential settlement communications, the parties did not reach an agreement before or after Plaintiff was

notified of her termination.

Furthermore, Plaintiff alleges that the undersigned counsel “unexpectedly intervened” in a payroll matter. (Doc. 29 at 3) This allegation is entirely false. Rather, it was Plaintiff who contacted the undersigned counsel demanding the undersigned’s assistance with access to her pay records. *See* Email Communications, attached as **Exhibit A**. When the undersigned responded that she would speak with Amentum about Plaintiff’s request, Plaintiff responded multiple times in a rude and disrespectful manner, but confirmed that she received a response from Amentum’s payroll specialist. *See* Ex. A. Accordingly, the undersigned took no further action on this issue. This is hardly grounds for sanctions against Amentum or Ms. Swiger. In fact, it is Plaintiff who should be admonished for the wholly unprofessional manner in which she communicated with the undersigned.

Moreover, the Court should reject Plaintiff’s assertion that sanctions are warranted because of alleged “retaliation immediately following protected activity.” (Doc. 29 at 4) This goes to the merits of the claims Plaintiff attempts to assert in this case. (*See* Doc. 27, Plaintiff’s Fourth Amended Complaint.) “Rule 11 should not be used to raise issues as to the legal sufficiency of a claim or defense that more appropriately can be disposed of by a motion to dismiss, a motion for judgment on the pleadings, a motion for summary judgment, or a trial on the merits.” *Bigford v. BESM, Inc.*, No. 12-61215-CIV-WILLIAMS/SELTZER, 2012 U.S. Dist. LEXIS

196166, at *4 (S.D. Fla. Oct. 12, 2012) (citation omitted).

Finally, while Plaintiff asserts in conclusory fashion that she has been “prejudiced” in two cases (this case and the Curtiss-Wright case), she does not identify a single way in which she was “harmed.” (Doc. 29 at 4) This is because there was no prejudice or harm to Plaintiff.

In sum, the Court should decline to use its inherent authority to impose sanctions against Amentum or Ms. Swiger. Instead, the Court should impose sanctions against Plaintiff for filing this improper and frivolous Motion and/or award Amentum its attorneys’ fees for having to respond to the Motion.

III. CONCLUSION

Plaintiff’s Motion is procedurally defective, legally baseless, and factually unsupported, and Plaintiff was well aware of that before she filed it. *See Exhibit B.* Rule 11 is inapplicable, as Plaintiff does not even contend that Amentum or Ms. Swiger filed a frivolous paper. Rule 37 likewise provides no basis for sanctions, as discovery has not even commenced. Finally, Plaintiff’s attempt to invoke the Court’s inherent authority fares no better, as Plaintiff’s assertions are conclusory, unsupported, and directed at matters that are entirely permissible. In short, Plaintiff’s Motion is nothing more than an improper attempt to harass Amentum and Ms. Swiger and burden the Court with issues that are clearly not sanctionable under any authority. Accordingly, Amentum and Ms. Swiger request that the Court award

Amentum its reasonable attorneys' fees incurred in responding to Plaintiff's Motion. See Fed. R. Civ. P. 11(c)(2) ("the court may award to the prevailing party the reasonable expenses, including attorney's fees, incurred for the motion").

WHEREFORE, Defendant, Amentum Government Services Parent Holdings LLC, and Lindsay Dennis Swiger respectfully request that this Honorable Court deny Plaintiff's Motion, award Defendant its reasonable attorneys' fees incurred in responding to this frivolous Motion, and grant such further relief as the Court deems just and proper.

Compliance with N.D. Fla. L.R. 7.1(F)

Pursuant to N.D. Fla. L.R. 7.1(F), counsel for Defendant confirms this Response in Opposition totals **1,716** words.

DATED this 23rd day of December, 2025.

Respectfully submitted,

JACKSON LEWIS P.C.
501 Riverside Ave., Suite 902
Jacksonville, Florida 32202
Telephone: (904) 638-2655
Facsimile: (904) 638-2656

By: /s/ Lindsay D. Swiger
Lindsay D. Swiger
Florida Bar No. 0045783
Lindsay.Swiger@jacksonlewis.com
Zackary A. Blanton
Florida Bar No. 1049172
Zackary.Blanton@jacksonlewis.com
Attorneys for Defendants

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 23rd day of December 2025, a true and correct copy of the foregoing was electronically filed with the Court by using the CM/ECF system and served via e-mail to the following *pro se* Plaintiff:

Debra Nelson



Pro se Plaintiff

/s/ Lindsay D. Swiger

Lindsay D. Swiger

Corbin, Kathy (Jacksonville)

From: Debra Nelson [REDACTED] >
Sent: Wednesday, November 26, 2025 7:41 AM
To: Swiger, Lindsay Dennis (Jacksonville)
Cc: Blanton, Zackary A. (Jacksonville)
Subject: Re: Follow-Up: Access to My Paystubs

You got me messed up. I'm not the average Pro Se litigant so you need to recognize and acknowledge that

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From: Debra Nelson <[REDACTED]>
Sent: Wednesday, November 26, 2025 7:15:55 AM
To: Swiger, Lindsay Dennis (Jacksonville) <Lindsay.Swiger@jacksonlewis.com>
Cc: Blanton, Zackary A. (Jacksonville) <Zackary.Blanton@jacksonlewis.com>
Subject: Re: Follow-Up: Access to My Paystubs

The payroll specialist has already responded. You're not calling any shots here. So I would appreciate it if you stop talking to me like you do. I don't answer to you.

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From: Swiger, Lindsay Dennis (Jacksonville) <Lindsay.Swiger@jacksonlewis.com>
Sent: Wednesday, November 26, 2025 7:10:37 AM
To: Debra Nelson [REDACTED] >
Cc: Blanton, Zackary A. (Jacksonville) <Zackary.Blanton@jacksonlewis.com>
Subject: RE: Follow-Up: Access to My Paystubs

Dear Ms. Nelson,

Your email below is the first time you have communicated with me regarding your Amentum paystubs. We will discuss this matter with our client and respond to your request. I am traveling for Thanksgiving this week and will not be able to get back to you until next week.

We hope you and your family have a relaxing Thanksgiving.

Regards,
Lindsay Swiger



Lindsay D. Swiger
Attorney at Law

Jackson Lewis P.C.
501 Riverside Ave
Suite 902

Jacksonville, FL 32202

Direct: (904) 638-2657 | Main: (904) 638-2655 | Mobile: (904) 703-3411

Lindsay.Swiger@jacksonlewis.com | www.jacksonlewis.com

From: Debra Nelson [REDACTED] >

Sent: Monday, November 24, 2025 2:19 PM

To: Swiger, Lindsay Dennis (Jacksonville) <Lindsay.Swiger@jacksonlewis.com>; Blanton, Zackary A. (Jacksonville) <Zackary.Blanton@jacksonlewis.com>

Subject: Follow-Up: Access to My Paystubs

Attorney Swiger,

I am following up regarding my request for access to my Amentum paystubs. I have already contacted Amentum Payroll directly and requested that they provide me access, but I also expect a response from you as counsel regarding the status of this request.

Please confirm whether you have contacted Payroll and when I can expect access to my complete pay records. This should be a straightforward matter, and I expect acknowledgment and a clear response without delay.

Thank you,
Debra Nelson

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Corbin, Kathy (Jacksonville)

From: Swiger, Lindsay Dennis (Jacksonville)
Sent: Friday, December 5, 2025 7:53 AM
To: Debra Nelson
Cc: Blanton, Zackary A. (Jacksonville)
Subject: RE: Meet and Confer – Supplemental Evidence of Cross-Case Coordination and Improper Disclosure Case: Nelson v. Amentum Services, Inc., 3:25-cv-01447 (N.D. Fla.)

Dear Ms. Nelson:

Defendant opposes your Motion for Sanctions. Defendant will file and serve its response brief as required by the applicable rules of civil procedure.

Defendant and the undersigned counsel deny that they engaged in any of the conduct you assert below or in your Motion for Sanctions. Even if such conduct did occur, it would have been wholly proper and is not sanctionable.

Accordingly, Defendant requests that you withdraw your Motion for Sanctions. If the Motion for Sanctions is not withdrawn, Defendant intends to seek recovery of its attorneys' fees for having to respond to your Motion for Sanctions.

Regards,
Lindsay Swiger



Lindsay D. Swiger

Attorney at Law

Jackson Lewis P.C.

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Lindsay.Swiger@jacksonlewis.com | www.jacksonlewis.com

From: Debra Nelson [REDACTED] >
Sent: Friday, December 5, 2025 3:41 AM
To: Swiger, Lindsay Dennis (Jacksonville) <Lindsay.Swiger@jacksonlewis.com>; Blanton, Zackary A. (Jacksonville) <Zackary.Blanton@jacksonlewis.com>
Subject: Meet and Confer – Supplemental Evidence of Cross-Case Coordination and Improper Disclosure Case: Nelson v. Amentum Services, Inc., 3:25-cv-01447 (N.D. Fla.)

Attorney Swiger,

This correspondence serves as an additional Meet and Confer related to Plaintiff's pending Motion for Sanctions and the newly submitted Supplemental Notice of Exhibit A, which contains deposition excerpts from the October 28, 2025 deposition in Nelson v. Curtiss-Wright Electro-Mechanical Corp.

These deposition pages directly show:

1. Attorney Samples possessed and used Plaintiff's Amentum Second Amended Complaint at the Curtiss-Wright deposition, despite Plaintiff never providing it.
2. He questioned Plaintiff extensively about the Amentum case, including allegations and internal issues he would have no independent knowledge of.
3. He asked Plaintiff about retaliation by Amentum the day before Plaintiff was terminated, indicating prior awareness of an action Plaintiff herself did not know was imminent.
4. He reacted to Plaintiff's use of the word "aggressive"—a term that appears in Curtiss-Wright's Answer in the South Carolina case—further demonstrating he was listening for facts to connect the two employers' narratives.
5. His questioning shows coordinated strategy across two separate federal cases in two different states, something that could not occur without improper disclosure of information.

These points reinforce the issues already raised in my sanctions motion:

improper sharing of confidential employment and litigation information,

coordination between defense counsel in separate jurisdictions,

bad faith settlement conduct, and

retaliatory timing of termination.

Before the Court addresses these matters, I am providing you an opportunity to respond specifically to the following:

1. How did Attorney Samples obtain Plaintiff's Amentum Second Amended Complaint?

Please identify whether it was provided by you, someone in your office, Amentum HR, or another third party.

2. How did Attorney Samples know to question Plaintiff about retaliation before termination occurred?

3. Did you or anyone at Amentum communicate with Attorney Samples, or any representative of Curtiss-Wright, regarding Plaintiff?

4. What explanation do you offer for the alignment between terminology in Curtis-Wright's Answer and your conduct as counsel in this matter?

5. Why was this information (including termination status) withheld from Plaintiff but disclosed or used in another federal case?

Please provide a written response within 24 hours so that I may include your position, if any, in upcoming filings.

If no explanation is provided, I will notify the Court that you declined to participate meaningfully in the meet-and-confer process.

Respectfully,
Debra Nelson
Pro Se Plaintiff

[REDACTED]

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